

Shri. Dhanunjaya S/O D.J. Chandrappa vs Smt. Varshita @ Shantha W/O Odhanunjaya on 13 June, 2023

Author: S G Pandit

Bench: S G Pandit

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MFA No. 100116 of 2018

IN THE HIGH COURT OF KARNATAKA,

DHARWAD BENCH

DATED THIS THE 13TH DAY OF JUNE, 2023

PRESENT

THE HON'BLE MR JUSTICE S G PANDIT

AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A.PATIL

MISCELLANEOUS FIRST APPEAL NO. 100116 OF 2018
(FC-DIV)

BETWEEN:

SHRI. DHANUNJAYA S/O. D. J. CHANDRAPPA
AGE: 35 YEARS, OCC: UNEMPLOYED,
R/O: NEAR OLD RAYADURGAM BUS STAND,
BENGALURU ROAD, BALLARI.-583101.

...APPELLANT.

(BY SRI. V. M. SHEELVANT, ADVOCATE).

AND:

SMT. VARSHITA @ SHANTHA W/O. DHANUNJAYA
AGE: 25 YEARS, OCC: LANDLADY,
R/O: RANJITHPURA VILLAGE,

VIJAYALAKSHMI
M KANKUPPI

SANDUR TALUKA, BALLARI DISTRICT-583101.

...RESPONDENT

Digitally signed by
VIJAYALAKSHMI M
KANKUPPI
Location: High Court
of Karnataka, Dharwad
Date: 2023.06.21
13:24:23 +0530

(BY SRI. BASAVANAGOUD T, ADVOCATE).

THIS MFA IS FILED U/S.19(1) OF THE FAMILY COURT ACT 1984, AGAINST THE JUDGEMENT AND DECREE DATED:23.08.2017, PASSED IN MATRIMONIAL CASE NO.190/2016 ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT, BALLARI, DISMISSING THE PETITION FILED U/SEC. 13(1a),(1b)(iii) AND 1A OF THE HINDU MARRIAGE ACT, 1955.

THIS APPEAL, COMING ON FOR ADMISSION, THIS DAY, VIJAYKUMAR A. PATIL, J., DELIVERED THE FOLLOWING:

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MFA No. 100116 of 2018

JUDGMENT

This appeal has been filed under Section 19(1) of the Family Courts Act, 1984, against the Judgment dated 23.08.2017 passed in M.C.No.190/2016 by the Principal Judge, Family Court, Ballari, by which the husband's petition seeking for dissolution of marriage on the ground of cruelty and desertion was dismissed.

2. Facts giving rise to filing of this appeal are, the appellant and the respondent's marriage was solemnized on 27.04.2016 at Bellary as per the customs and rituals of the community. It is averred that the respondent has joined the matrimonial home at Bellary. The appellant states that he has given gold, silver and other valuable articles to the respondent/wife, however, since the date of marriage the respondent has not shown any interest in married life. It is averred that, at the instance of the parents the respondent started picking up quarrels and started harassing the appellant without any valid reasons, insisted to stay at her parents house, demanded money from time to time and used to send those money to her parents. It is further averred that, there is no nuptial ceremony and no consummation of marriage has taken place. The respondent used to insult the appellant and never use to give respect to the appellant in front of the elders. She failed to perform the duties of the dutiful wife, she never prepared the food to the appellant and his family members. Most of the time she use to be with her parents. She has stayed only for a period of 30 days with the appellant. The marriage was only for the purpose of extracting money and nuptial ceremony was arranged on 11.05.2016 at Ranjithpur. She flatly refused to join for nuptial ceremony and deserted the appellant willfully, started to live with her parents and refused to come to the matrimonial home, which has caused mental cruelty to the appellant. The appellant has issued legal notice asking the respondent to join the matrimonial home, however, she refused to do so, once she has consented for mutual divorce. However, she has not come forward, for mutual divorce, hence petition for dissolution of marriage on the ground of cruelty and desertion was filed.

3. The respondent has filed statement of objections before the Family Court, admitting the relationship between the parties, date of marriage. It is averred that, it is the appellant and his family members have demanded, received a sum of Rs.40,000/- cash, 20 grams of gold from the mother of the respondent as a dowry at the time of marriage. She has led married life with the appellant, however, the appellant and his family members have looked after the respondent only for

a period of two months and thereafter they have started harassing the respondent for additional dowry, despite the advise of the elders, the appellant and his family members have not changed their attitude and continued to harass the respondent for demand of dowry. It is averred that, the appellant has suspected the fidelity of the respondent and used to abuse her without any reason on flimsy grounds and on several occasion the appellant has assaulted the respondent physically and mentally. It is further averred that, the respondent was of the fond hope that the appellant would change his attitude, she could not file any complaint for such harassment against the appellant. It is also averred that the appellant and his family members have forcefully thrown out the respondent from the matrimonial home without any reason or there being any fault on the part of the respondent, even today the respondent is ready to rejoin the petitioner and ready to lead married life with the appellant.

4. The Family Court framed the issues, recorded the evidence of the parties. The appellant examined himself as P.W.1 and other two witnesses as P.W.2 and P.W.3 and got marked Ex.P.1 to Ex.P.8. The respondent has not led any evidence. The Family Court vide Judgment dated 23.08.2017 dismissed the petition. In the aforesaid factual matrix the appeal has been filed.

5. Learned counsel Sri. V.M.Sheelvant, appearing for appellant submits that, the Family Court has committed error in appreciating the evidence on record and come to a incorrect conclusion that the appellant has failed to prove the grounds of cruelty and desertion. It is submitted that, the impugned Judgment of the Family Court is contrary to law and evidence on record. It is further submitted that, the Family Court has failed to appreciate the fact that, the respondent used to abuse the appellant in front of his relatives and friends, which has caused mental cruelty on the appellant.

6. It is also submitted that, the respondent-wife has openly admitted that she was in love with one Veeresh and she was not willing to lead married life with the appellant herein, however, the Family Court has erred in appreciating the said admission. The Family Court ought to have dissolved the marriage on the ground the respondent-wife had love affair with Sri. Veeresh which amounts to cruelty on the appellant. He submits that the respondent left the matrimonial home on 11.05.2016 and refused to return to the matrimonial home despite all the efforts made by the appellant to bring her back, she refused to rejoin. The act of the respondent in refusing to rejoin despite an attempt of the appellant amounts to desertion and the Family Court has erred in not allowing the petition on the ground of desertion. It is submitted that, the Family Court has erred in discarding the evidence of P.W.2 on the ground that, P.W.2 is a maternal uncle of the appellant, hence, it cannot be considered his testimony. In a matrimonial dispute, it would be inappropriate to expect outsider to come and speak with regard to matrimonial discard. Hence, the Family Court has committed error in appreciating the evidence on record, resulting in dismissal of the petition.

7. Further submits that, the Family Court has erred in holding that the evidence of P.W.1 was not sufficient to hold that, the respondent had deserted him and no efforts were made by the appellant herein to bring her back to the matrimonial home. Though the respondent has not entered the witness box, the Family Court ought to have considered the evidence of P.W.1 as it is, as there was no cross-examination. It is also submitted that, the Family Court has erred in holding that, the telephonic conversation between the appellant and the respondents were not sufficient to come to

conclusion that the respondent was in illicit relationship with one Veeresh. The Family Court has also erred in not appreciating the fact that, there was no consummation of marriage between the parties. The Family Court ought to have allowed the petition on the ground of cruelty and desertion. Hence, he sought to interfere in the present appeal.

8. Per contra, Sri. Basavanagoud T, learned counsel appearing for the respondent supports the impugned Judgment and submits that, the appellant has failed to prove the grounds of cruelty and desertion before the Family Court and the Family Court has rightly come to the conclusion that there is no cruelty caused by respondent-wife and it is because of the dowry harassment of the appellant husband she has left the matrimonial home. It is submitted that, there is no dispute with regard to the relationship between the parties, however, it is categorically disputed the alleged cruelty by the respondent. The appellant has examined himself and other two witnesses, however, there is no specific instance of cruelty has been pointed out either in the pleading or in the evidence to come to a conclusion that, there was cruelty on the part of the respondent. Hence, the Family Court has rightly disbelieved the grounds urged by the appellant and dismissed the petition, which does not call for any interference in the present appeal and he seeks for dismissal of the appeal.

9. We have heard the learned counsel for the appellant, learned counsel for the respondent, perused the memorandum of appeal and trial Court records.

10. The appellant has filed petition seeking for dissolution of marriage on the ground of cruelty and desertion. To establish the factum of cruelty the appellant has pleaded that, the respondent has refused to have

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marital relationship with the appellant and there was no nuptial ceremony held after the marriage has caused mental cruelty. It is pleaded that, the respondent wife used to visit frequently to her parents house and use to spend most of her time with her parents instead of being in the matrimonial home. She never adjusted with the appellant and his family members, she used to pick up quarrel with the appellant without any reason on flimsy grounds.

11. It is further pleaded that, the respondent never prepared the food, nor done any household work, she used to insult the appellant in front of the elders. It is also pleaded that, the respondent had a love affair with one Veeresh and she wanted to marry the said Veeresh. Only for the sake of money she had married the appellant against her wish. On 11.05.2016 the respondent wife deserted the appellant and settled down with her parents. Despite making all the efforts to bring the respondent-wife to the matrimonial home, she refused to rejoin the

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matrimonial home. The aforesaid allegations of cruelty and desertion are reiterated by the appellant in his examination-in-chief and the said averments are reiterated by the P.W.2 and P.W.3 in their affidavits. The respondent-wife has not adduced any evidence nor cross-examined the witnesses

examined on behalf of the appellant, however, she has filed statement of objections denying the averments/allegations of cruelty and desertion.

11. On meticulous examination of the evidence on record it is evident that, the parties to the proceedings have not denied their relationship. The only assertion that was made by the appellant in his evidence that, the respondent refused to join for the nuptial ceremony, frequently used to visit her parents house, use to insult the appellant in front of the elders, unnecessarily she used to pick up quarrel on silly reasons and she has failed to perform duties of preparing the food and household chores. These assertions/allegations of cruelty are not so

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weighty to come to conclusion that, the respondent-wife has caused mental cruelty to the appellant.

12. The instances of cruelty pleaded and reiterated in the evidence are nothing but usual wear and tear of the marital dispute. The appellant neither in the pleading nor in the evidence has pointed out any specific instances of cruelty to come to a conclusion that the said acts amounts to cruelty to such an extent that the appellant is unable to lead married life with the respondent. In the absence of any specific instances of cruelty merely pleading stray and routine instances which have taken place between the husband and wife cannot be termed as a mental cruelty to come to a conclusion that the parties are unable to lead the married life. All the allegations of cruelty pleaded and reiterated in the evidence cannot be termed as a mental cruelty by the respondent-wife to dissolve the marriage on the ground of cruelty. The allegation that the respondent- wife was in love with one Veeresh and she had admitted the same, cannot be appreciated in the absence of any

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cogent and acceptable evidence and are made without making Sri. Veeresh as a party to the proceeding. The allegation of adultery is a serious allegation and such allegation is to be prayed with cogent and acceptable evidence. In the absence of any such evidence and in the absence of making Sri. Veeresh as party before the Family Court, the allegations are required to be rejected.

13. It will be useful to refer the decisions of the Hon'ble Supreme Court in following cases:

Samar Ghosh Vs. Jaya Ghosh, reported in (2007) 4 SCC 511, wherein at paragraph No.101 held as under:

101: "No uniform standard can ever be laid down for guidance, yet we deem it appropriate to enumerate some instances of human behaviour which may be relevant in dealing with the cases of 'mental cruelty'. The instances indicated in the succeeding paragraphs are only illustrative and not exhaustive.

(i) On consideration of complete matrimonial life of the parties, acute mental pain, agony and suffering as would not make possible for the parties to live with each other

could come within the broad parameters of mental cruelty.

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(ii) On comprehensive appraisal of the entire matrimonial life of the parties, it becomes abundantly clear that situation is such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with other party.

(iii) Mere coldness or lack of affection cannot amount to cruelty, frequent rudeness of language, petulance of manner, indifference and neglect may reach such a degree that it makes the married life for the other spouse absolutely intolerable.

(iv) Mental cruelty is a state of mind. The feeling of deep anguish, disappointment, frustration in one spouse caused by the conduct of other for a long time may lead to mental cruelty.

(v) A sustained course of abusive and humiliating treatment calculated to torture, discommode or render miserable life of the spouse.

(vi) Sustained unjustifiable conduct and behaviour of one spouse actually affecting physical and mental health of the other spouse.

The treatment complained of and the resultant danger or apprehension must be very grave, substantial and weighty.

(vii) Sustained reprehensible conduct, studied neglect, indifference or total departure from the normal standard of conjugal kindness causing injury to mental health or derivingsadistic pleasure can also amount to mental cruelty.

(viii) The conduct must be much more than jealousy, selfishness, possessiveness, which causes unhappiness and dissatisfaction and

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emotional upset may not be a ground for grant of divorce on the ground of mental cruelty.

(ix) Mere trivial irritations, quarrels, normal wear and tear of the married life which happens in day-to-day life would not be adequate for grant of divorce on the ground of mental cruelty.

(x) The married life should be reviewed as a whole and a few isolated instances over a period of years will not amount to cruelty. The ill- conduct must be persistent for a fairly lengthy period, where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, the wronged party finds it extremely difficult to live with the other party any longer, may

amount to mental cruelty.

(xi) If a husband submits himself for an operation of sterilization without medical reasons and without the consent or knowledge of his wife and similarly if the wife undergoes vasectomy or abortion without medical reason or without the consent or knowledge of her husband, such an act of the spouse may lead to mental cruelty.

(xii) Unilateral decision of refusal to have intercourse for considerable period without there being any physical incapacity or valid reason may amount to mental cruelty.

(xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty.

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties. In

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such like situations, it may lead to mental cruelty."

Mayadevi Vs. Jagadish, reported in (2007) 3 SCC 136, wherein at paragraph Nos.12 to 14 held as under:

12. "To constitute cruelty, the conduct complained of should be "grave and weighty; so as to come to the conclusion that the petitioner spouse cannot be reasonably expected to live with the other spouse. It must be something more serious than "ordinary wear and tear of married life". The conduct, taking into consideration the circumstances and background has to be examined to reach the conclusion whether the conduct complained of amounts to cruelty in the matrimonial law. Conduct has to be considered, as noted above, in the background of several factors such as social status of parties, their education, physical and mental conditions, customs and traditions. It is difficult to lay down a precise definition or to give exhaustive description of the circumstances, which would constitute cruelty. It must be of the type as to satisfy the conscience of the Court that the relationship between the parties had deteriorated to such an extent due to the conduct of the other spouse that it would be impossible for them to live together without mental agony, torture or distress, to entitle the complaining spouse to secure divorce. Physical violence is not absolutely essential to constitute cruelty and a consistent course of conduct inflicting immeasurable mental agony and torture may well constitute cruelty within the meaning of Section 10 of the Act. Mental cruelty may consist of verbal abuses and insults by using filthy and abusive language leading to constant disturbance of mental peace of the other party.

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13. The Court dealing with the petition for divorce on the ground of cruelty has to bear in mind that the problems before it are those of human beings and the psychological changes in a spouse's conduct have to be borne in mind before disposing of the petition for divorce. However insignificant or trifling, such conduct may cause pain in the mind of another. But before the conduct can be called cruelty, it must touch a certain pitch of severity. It is for the Court to weigh the gravity. It has to be seen whether the conduct was such that no reasonable person would tolerate it. It has to be considered whether the complainant should be called upon to endure as a part of normal human life. Every matrimonial conduct, which may cause annoyance to the other, may not amount to cruelty. Mere trivial irritations, quarrels between spouses, which happen in day- to-day married life, may also not amount to cruelty. Cruelty in matrimonial life may be of unfounded variety, which can be subtle or brutal. It may be words, gestures or by mere silence, violent or non-violent.

14. The foundation of a sound marriage is tolerance, adjustment and respecting one another. Tolerance to each other's fault to a certain bearable extent has to be inherent in every marriage. Petty quibbles, trifling differences should not be exaggerated and magnified to destroy what is said to have been made in heaven. All quarrels must be weighed from that point of view in determining what constitutes cruelty in each particular case and as noted above, always keeping in view the physical and mental conditions of the parties, their character and social status. A too technical and hyper-sensitive approach would be counter-productive to the institution of marriage. The Courts do not have to deal with ideal husbands and ideal wives. It has to deal with particular man and woman before it. The ideal

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couple or a mere ideal one will probably have no occasion to go to Matrimonial Court. "

14. Keeping in mind the ratio laid down by the Hon'ble Supreme Court in the above decisions, we are of the considered view that the appellant has failed to prove the grounds of cruelty.

15. Insofar as the ground for dissolution of marriage on the ground of desertion. The marriage between the parties was solemnized on 27.04.2016 and the petition for dissolution of marriage on the ground of cruelty and desertion was filed on 08.11.2016. The petition was presented within a period of seven months.

Section 13 (1)(ib) of the Hindu Marriage Act, mandates that the petition for dissolution of marriage on the ground of desertion shall be filed when either of the spouse deserted the another spouse for continuous period of not less than two year immediately preceding the presentation of petition. In the instant case, the marriage was solemnized on 27.04.2016 and petition for dissolution of

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marriage was filed on 08.11.2016 which is less than the stipulated period under Section 13(1)(ib). Hence, as on the date of presentation of the petition ground of desertion was not available to the appellant. On this ground also the appeal is liable to be rejected.

16. The Family Court on appreciation of evidence on record has recorded a categorical finding that the appellant has failed to prove the grounds of cruelty and desertion for dissolving the marriage. We do not find any error in the finding recorded by the Family Court, calling for interference in the present appeal.

17. For the aforementioned reasons, we do not find any merit in this appeal. The same fails and hereby dismissed.

Sd/-

JUDGE Sd/-

JUDGE Sv/-